

25STCV15859 25STCV15859

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-08-14

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Case Number: 25STCV15859 Hearing Date: August 14, 2026 Dept: 732

Rodriguez v. Gonzalez, et al.

Friday, August 14, 2026

CASE NUMBER: 25STCV15859

UNOPPOSED

PETITION TO CONFIRM MINOR'S COMPROMISE

Analysis

The Court incorporates the reasoning set forth in its minute order of June 9, 2026, which continued the hearing on Plaintiff's petition pending an explanation of the apportionment of settlement proceeds between Claimant and Plaintiff/Petitioner.

Plaintiff's counsel filed a declaration in response to the Court's minute order on June 17, 2026. The declaration is helpful, but insufficient.

Counsel clarifies that, after deductions, Plaintiff/Petitioner will recover only \$71,900.00 compared with Claimant's \$7,224.66. (Nickfardjam Decl., ¶ 5.) This difference is not unreasonable per se. However, neither the Petition nor Counsel's supplemental declaration explain what injuries either Petitioner or Claimant suffered in the underlying accident. The Court requires this information to verify that the proposed compromise is fair to Claimant. Counsel expresses his professional opinion that the settlement is fair based on relevant factors. (Id., ¶¶ 4, 7.) Counsel's opinion is not evidence sufficient for the Court to make its own fairness determination.

The Court notes, for example, that Claimant appears to have incurred more than \$5,000.00 in medical bills in connection with the underlying accident. (See Pet., ¶ 12.) The medical bills have been substantially reduced and do not meaningfully effect

Claimant's net recovery. However, the amount of the bills raises the possibility that Claimant may have sustained considerable injuries in the accident. By comparison, Counsel's declaration states that Plaintiff/Petitioner has approximately \$37,000.00 in "Outstanding Medical Bills and Liens" (Nickfardjam Decl., ¶ 5, *italics added*), which suggests the figure includes both medical expenses incurred as a result of the accident and medical bills incurred in the course of litigation.

In any case, it should not be necessary for the Court to reason backward from medical bills; an explanation of the factual basis for recovery should be easily accomplished.

The hearing is CONTINUED to _____, 2026 for counsel to submit a second supplemental declaration from him or his client describing the injuries or damages that warrant the proposed division of settlement funds.

Dated: August 14, 2026

Hon. Richard S. Kemalyan

Judge of the Superior Court